
ICE's threat was there from the beginning

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ICE's threat was there from the beginning

America has been through plenty of dark times in its history, from a Civil War to depressions and two bloody world wars that leveled much of the world. But for most of us alive today, those events all happened before we were born. Aside from the ongoing menace of nuclear annihilation, the biggest threat we've faced as a country was [9/11](#) when the country's mainland was attacked by al-Qaeda. It led to what we quickly dubbed the [War on Terror](#), an absurd misnomer that had the effect of not only empowering the [George W. Bush](#) administration to invade a country that didn't attack us, but also opened the door to a new era of domestic government police powers with very little oversight.

While the War on Terror may be something of an anachronism today, the bureaucratic relics of that time are still with us — and they have become exactly what we feared it would be: a domestic police force that has led not only to the repression of basic rights and liberties, but also to a creeping authoritarian state.

As the nation still reeled from the attacks in September 2001, the administration and its enablers in Congress set about enacting many of the repressive laws, having sometimes chafed at the restrictions imposed by post-Watergate reforms reining in the various police and intelligence agencies that had gone wild during the Cold War.

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Within 45 days, Congress passed the [USA Patriot Act](#) with overwhelming bipartisan support, vastly expanding the government's spying authority and capability, and lifting much of the oversight which protected citizens' civil liberties. The bill also gave the government new authority to designate individuals as part of a terrorist group, seize property and jail immigrants indefinitely. Such was America's fear and angst that its leaders were more than willing to toss aside the nation's hard-won privacy protections in a moment of shock.

Over the years, there has been tremendous pushback from civil libertarians, and while the legislation expired in 2020, many of its provisions are still in effect thanks to the [USA Freedom Act of 2015](#), which included some reforms but left the country with a more repressive system overall.

Even before 9/11, officials in national security circles [had discussed](#) changing the structure of some of the agencies to deal with the urgent threat of terrorism following the end of the Cold War. The previous decade had seen a number of attacks, starting with the first [World Trade Center Bombing](#) in 1993, [Oklahoma City](#) in 1995, the [embassy bombings in East Africa](#) in 1998 and the [bombing of the USS Cole](#) in 2000. There had been ongoing debates about ways to confront this new threat, although they didn't make much headway. After 9/11, everything changed.

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Learning that there had been warnings and clues about the attacks that [weren't communicated to other agencies](#), the government quickly adopted an idea that had been floating around for some time to consolidate many of the agencies under a couple of big new umbrellas. One would be the [director of National Intelligence](#), a position that would coordinate between all the security agencies such as the National Security Agency and the CIA. The other would be a massive new domestic

police agency, combining some of the agencies that had either been independent or housed in other departments including Transportation Security Administration, Federal Emergency Management Agency, Customs Service, Coast Guard and the Secret Service, along with parts of the Immigration and Naturalization Service (INS).

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From the moment they called it the [Department of Homeland Security](#), many civil libertarians and historians knew we were looking at trouble. The word “Homeland” carries a lot of freight, evoking the German *heimat*, a word that was used liberally by the Nazis. As James Traub [wrote in the New York Times](#), the word “points to a world of solidarity forged through blood ties, through ancient ritual and legend” which “America’s founding generations gratefully left behind when they reached the New World, where they built a nation out of acquiescence to a shared social contract.” Even right-wing pundits like the Wall Street Journal’s [Peggy Noonan](#) said they should change the name because “it grates on a lot of people, understandably. *Homeland* isn’t really an American word.”

It certainly grated on people who were concerned that building a gigantic, centralized, domestic police agency with virtually unaccountable new powers would very likely lead to repression and authoritarianism. They were dismissed as hysterics, as usual.

The fervent embrace of that word — “homeland” — should have been a clue that it was a feature, not a bug. We know that now. DHS is a vast bureaucratic organization, which is currently in the process of [abdicating its duties](#) to functions like disaster relief and airline security and focusing its massive budget on what is essentially operating as a secret police agency.

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That agency is the [Immigration and Customs Enforcement](#), which was [created](#) out of whole cloth in 2003 as part of the DHS, as was Customs and Border Protection, which merged the functions from Customs Service, Border Patrol and certain aspects of INS. Despite the fact that these new domestic agencies were allegedly conceived for counterterrorism purposes, immigration at the border became a top conservative issue during the same period.

ICE was given jurisdiction to chase down undocumented workers throughout the nation’s interior, unlike border patrol, which was confined to 100 miles from the border. Under [Barack Obama](#), ICE [deported](#) more immigrants than any administration in history, but they focused on new immigrants and didn’t go into the country’s interior to grab long-time residents. The idea, at the time, was to prove they were serious about border security to get buy-in for comprehensive immigration controls from [Republicans](#). That, of course, As usual, that was a [pipe dream](#).

Donald Trump, with the guidance of White House deputy chief of staff [Stephen Miller](#), has now unleashed this huge police force on the entire country to terrorize cities and towns all over the

country with faces covered, dressed in military gear and armed to the teeth. ICE forces are not only brutalizing immigrants (and anyone they think looks like they might be one), they are aggressively confronting protesters and citizens who are filming them doing what they're doing. Last week they shot and killed one such citizen activist, Renee Nicole Good, in Minneapolis.

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As feared from the moment DHS was given a name that echoed authoritarian governments of the last century, these secret police are being used for political purposes. Trump has sent them into Minnesota to [target](#) a specific Black, immigrant and Muslim community, and to exact vengeance on his perceived enemies, Gov. [Tim Walz](#) and Rep. [Ilhan Omar](#), both Democrats. Now they are calling that young, liberal, white, female protester who was shot in the face at close range by an ICE officer a domestic terrorist. It ticks all the boxes of their agenda.

The danger was clear from the beginning. If you build a giant police organization and give it virtually unlimited money and unlimited power, they will use it. To paraphrase Trump, if you create a secret police force you won't have a democracy anymore. We are perilously close to losing ours.

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